

26STCV16967 26STCV16967

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Case Number: 26STCV16967 Hearing Date: August 20, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 20, 2026

Case Name: Abbou v. Los Angeles-M, Inc., et al.

Case No.: 26STCV16967

Matter: Motion to Compel Arbitration

Ruling: The Motion to Compel Arbitration is granted,

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an employment matter.

Defendants Los Angeles-M, Inc. and Lithia Motors, Inc. seek to compel arbitration of this matter.

"[O]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc. § 1281.2; see also EFund Capital Partners v. Pless (2007) 150 Cal.App.4th 1311, 1320 [the language in section 1281.2 compelling arbitration is mandatory].) The right to compel arbitration exists unless the court finds that the right has been waived by a

party's conduct, other grounds exist for revocation of the agreement, or where a pending court action arising out of the same transaction creates the possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc. § 1281.2(a)-(c).)

"On a petition to compel arbitration, the trial court must first determine whether an agreement to arbitrate the controversy exists. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent's signature." (Bannister v. Marinidence Opco, LLC (2021) 64 Cal.App.5th 541.) The party seeking to compel arbitration must also "plead and prove a prior demand for arbitration and a refusal to arbitrate under the agreement." (Mansouri v. Superior Court (2010) 181 Cal.App.4th 633, 640-641.)

Plaintiff Ali Abbou argues the agreement is unconscionable or otherwise invalid.

" '[U]nconscionability has both a "procedural" and a "substantive" element,' the former focusing on ' "oppression" ' or ' "surprise" ' due to unequal bargaining power, the latter on ' "overly harsh" ' or ' "one-sided" ' results. [Citation.] 'The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.' [Citation.] But they need not be present in the same degree.... [T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (Armendariz v. Found. Health Psychcare Servs., Inc. (2000) 24 Cal.4th 83, 114.)

Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83 requires that an arbitration agreement pertaining to FEHA claims: (1) provide for neutral arbitrators, (2) provide for more than minimal discovery, (3) require a written award, (4) provide for all of the types of relief that would otherwise be available in court, and (5) not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum. (Armendariz v. Found. Health Psychcare Servs., Inc. (2000) 24 Cal.4th 83, 102.)

Plaintiff contends the Agreement is invalid because it omits explicit reference to judicial review. However, Armendariz does not require an arbitration clause to re-state statutory grounds for judicial review under Code of Civil Procedure section 1285 et seq. Expressing that an award is "final and binding" is standard practice (see Moncharsh v. Heily & Blase (1992) 3 Cal. 4th 1, 10).

Plaintiff argues CPR Rule 11.4 impermissibly limits discovery to a single default deposition. However, the express terms of the subject Agreement control over the CPR Rules. The Agreement explicitly provides that discovery shall be conducted as permitted by the arbitrator to achieve an "efficient and just resolution," incorporating CPR Rule 11.2 (which authorizes the arbitrator to grant discovery as reasonably necessary). Discretionary discovery standard under arbitrator control satisfies Armendariz requirements (Sanchez v. CarMax Auto Superstores California, LLC (2014) 224 Cal.App.4th 398, 404–405).

Venue is legally established in Los Angeles County through procedural incorporation and statutory mandate. By incorporating the International Institute for Conflict Prevention and Resolution (CPR) Rules, CPR Rule 9.2 mandates that, absent express agreement, the default venue for arbitration is the location where the employee was last employed by the company (here, Keyes European in Los Angeles). Furthermore, because Plaintiff performed his work in California, California Labor Code section 925 independently prohibits and voids any contractual attempt to mandate out-of-state adjudication, automatically defaulting the venue to California as a matter of law. Taken together with the clause requiring the agreement to be carried out under the California Arbitration Act (Code Civ. Proc., § 1280 et seq.), the venue properly lies in Los Angeles County.

On the other hand, considering the agreement is an adhesion contract, the Court finds the PAGA waiver to be unlawful. (Iskanian v. CLS Transportation Los Angeles, LLC (2014) 59 Cal.4th 348; Adolph v. Uber Technologies, Inc. (2023) 14 Cal.5th 1104.) In the exercise of the Court's discretion, this provision is stricken. (Civ. Code § 1670.5.)

Because an otherwise valid agreement exists between the parties, the Motion to Compel Arbitration is granted. This action is stayed pending the resolution of arbitration. (CCP § 1281.4.)

Moving party to give notice.